



POLICE DEPARTMENT

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In the Matter of the Disciplinary Proceedings :
:
- against : FINAL
Police Officer Corey Harris : ORDER
Tax Registry No. 947064 : OF
Police Service Area 2 : DISMISSAL
-----X

Police Officer Corey Harris, Tax Registry No. 947064, Shield No. 12549, Social Security No. ending in [REDACTED] been served with written notice, has been tried on written Charges and Specifications numbered 2013-11049, as set forth on form P.D. 468-121, dated January 3, 2014, and after a review of the entire record, has been found Guilty as Charged.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Corey Harris from the Police Service of the City of New York.


WILLIAM J. BRATTON
POLICE COMMISSIONER

EFFECTIVE: ON MAY 22, 2015 AT 0001 HRS.



POLICE DEPARTMENT

April 1, 2015

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In the Matter of the Charges and Specifications : Case No.
- against - : 2013 11049
Police Officer Corey Harris :
Tax Registry No. 947064 :
Police Service Area 2 :
-----X

At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable Amy J. Porter
Deputy Commissioner - Trials

APPEARANCE:

For the Department: Vivian Joo, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent: Anthony Mahoney, Esq.
Cronin & Byczek, LLP
Fountains at Lake Success
1983 Marcus Avenue, Suite C-120
Lake Success, NY 11042

To:

HONORABLE WILLIAM J. BRATTON
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

The above-named member of the Department appeared before me on July 28, October 6, and November 18, 2014, charged with the following:

1. Said Police Officer Corey Harris, assigned to the 102nd Precinct, while on-duty, on July 23, 2012, engaged in conduct prejudicial to the good order, efficiency and discipline of the Department in that said Police Officer failed to perform a duty imposed upon him by his office, to wit: said Police Officer falsely reported the amount of money recovered from a vehicle to his supervisor in an attempt to keep the money from a vehicle he was inventorying.

P.G. 203-13, Page 1, Paragraph 5 PROHIBITED CONDUCT
Penal Law Section 195.00(2) OFFICIAL MISCONDUCT

2. Said Police Officer Corey Harris, while assigned as indicated above, on or about July 23, 2012, failed to make required entries in his Department issued memobook.

P.G. 212-08, Pages 1-2 ACTIVITY LOGS

3. Said Police Officer Corey Harris, assigned as indicated above, on or about January 9, 2013, accepted a loan in the amount of \$2500.00 from a merchant doing business in the area of said Police Officer's assignment.

P.G. 203-13, Page 1, Paragraph 5 – FINANCIAL RESTRICTIONS
PROHIBITED ACTS

The Department was represented by Vivian Joo, Esq., Department Advocate's Office, and Respondent was represented by Anthony Mahoney, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty of all charges.

SPECIFICATION NO. 1*Introduction*

On July 23, 2012, Respondent was a member of the 102 Precinct Conditions Team and assigned as Sergeant Ronald Marti's operator. At approximately 1:00 p.m. that day, they observed a vehicle fitting the description of a car wanted for reckless endangerment. A car stop resulted in Respondent arresting the driver, Person A. Two additional conditions team members, Police Officers Richard Sagistano and Edward Herdina, responded to the scene to provide assistance. (Herdina has since been promoted to sergeant.)

While Respondent and Sagistano transported Person A to the station house in a Department vehicle, Herdina drove Person A's car to the command. Herdina found \$1380 in the glove compartment. Respondent then searched the vehicle and reported to Marti that the amount recovered from the glove compartment was \$1200. Knowing that this amount was incorrect, Herdina informed Marti that there was \$180 missing. Marti confronted Respondent about the matter and told him to check the car for the missing cash. Respondent returned with the remainder of the money. Marti notified his commanding officer, who in turn notified the Internal Affairs Bureau (IAB).

*Summary*Sergeant Edward Herdina

According to Herdina, Person A loudly stated at the arrest scene that there was a large sum of money in the glove box for his mother's rent. Everybody at the scene would have heard Person A's statement. When Herdina got in the car to drive it to the

command he looked in the glove box, where he found on top a neatly-stacked pile of three 100-dollar bills and more than 50 20-dollar bills. He immediately counted the money, which totaled \$1380. He recounted while stopped at a red light, and he counted a third time in the station house parking lot. He entered in his Activity Log "\$1380 recovered from glove box" [Department's Exhibit (DX) 4] and he placed the money back where he found it. Once back at the command, he searched the car with Sagistano. The money in the glove compartment was the only money Herdina saw in the car. He then locked the car and gave the keys to Respondent. Herdina explained why he left the money in the car for Respondent to handle: "It was a trust issue. Officer Harris was a relatively new member of our team and there was no specific incident . . . but I just didn't trust him. I didn't want to say how much money I counted at first because I wanted to see what his count [would be]."

Inside the station house, Marti asked Herdina if he counted the money in the car. Because there were other officers in the room and he wanted to continue his impromptu "integrity test" of Respondent, Herdina did not reveal that he had counted the money. Herdina was present in the Special Operations office moments later when Respondent entered and announced to Marti that the amount recovered from the car was \$1200. This announcement shocked and upset Herdina. Approximately 20 minutes later, Herdina brought Marti to a private area and told him about the missing \$180. Shortly thereafter, Herdina observed Marti enter a back room with Respondent, followed by Respondent leaving the office. Herdina next saw Respondent outside as Respondent exited his personal vehicle and walked toward the command.

Police Officer Richard Sagistano

Sagistano testified that he did not specifically recall which part of the car he searched or what was recovered. He did not recall seeing any money. He and Herdina resumed patrol at about 1:30 p.m. Sagistano was unaware of Herdina having issues with Respondent.

Sergeant Ronald Marti

Marti testified that at the arrest scene Person A's girlfriend was on the sidewalk causing a commotion. Marti wanted to get away from there as quickly as possible. He did not recall Person A saying anything about there being money in the car.

Marti did not have any personal involvement in the physical search of Person A's vehicle. He explained that it was the responsibility of the arresting officer to search the vehicle and voucher the items found inside.

Upon review of the command log from that day [DX 2], he stated that it was at approximately 1:30 p.m. that Respondent brought \$1200 into the command for vouchering. During the next half hour, Herdina notified Marti of the missing money, Marti confronted Respondent about the matter, Respondent presented the remainder of the cash, and Marti amended the command log entry to show the full amount of \$1380. Marti immediately notified his commanding officer because he knew the commanding officer would be leaving at around 3:00 p.m.

At 8:00 p.m., Marti was walking out at the end of tour. Respondent approached him, apologized for what had happened and said that his father needed prescription medication. He then asked Marti, "Are we good? Are we good?"

Marti was unaware of Herdina not liking Respondent. Respondent socialized with his fellow team members while off duty

Lieutenant Benedict Vitale

Vitale, assigned to IAB, supervised the investigation into Respondent's alleged misconduct. He was present at the official Department interviews of Respondent and Herdina. Herdina stated in his interview that he had a "gut feeling" Respondent was not an honest person. Herdina stated in one interview that he counted the money while driving back to the command, but stated in a second interview that he counted it after he returned to the station house. In either case, Vitale thought it was perfectly normal for Herdina to have counted the money since Herdina had been responsible for driving Person A's car to the command and he could have been implicated had Person A alleged money was missing.

Respondent had passed an April 2013 integrity test which involved him transporting a vehicle that contained a large amount of money.

Respondent

Respondent testified that Herdina did not like him, though he did not know why. There were times that the conditions team members went out together after work, and Respondent did not join them.

On July 23, 2012, Respondent and Sagistano left the arrest scene long before Herdina and Marti. Later, back at the command, Marti told Respondent to go out to Person A's car because there was money in the glove compartment and other property in

the back. Between 2:00 and 3:00 p.m., Respondent looked in those specific areas of the car, retrieved the money and property, and began the arrest paperwork. It was between 7:00 and 8:00 p.m. that Marti returned to Respondent and told him to go back to the car because there was money missing. In a subsequent search of the vehicle, Respondent found \$180 in the center console. That was the first time that he looked there.

Respondent conceded that he should have searched the entire car earlier. He denied taking the \$180 from Person A's car or telling Marti that his father was ill and in need of prescription medication. He claimed that he did not apologize to Marti for taking money, but that he apologized for failing to conduct a thorough search of the car earlier. The only time he went to his personal vehicle that day was at the end of tour. Before that day, Respondent had a good working relationship with Marti.

Respondent's Character Witnesses

Between January 2010 and November 2011, Lieutenant Christopher Lamarche was Respondent's supervisor, though not his direct supervisor. At that time Respondent was starting his career in the 67 Precinct. Lamarche trusted Respondent, never had a problem with him, and characterized him as a good worker.

Sergeant Michael Allocca was Respondent's supervisor in the 67 Precinct between 2009 and 2010. He described Respondent's performance during that period as "more than exceptional." Because the commanding officer was very strict about evaluating new officers, Allocca could only give Respondent a rating of 3.0 on his first annual evaluation. The next year, Allocca rated him 4.0, which was as high a rating as any new officer received. During his time in the 67 Precinct, Respondent was often

responsible for vouchering property for the arrests that he made. There was never any problem. Allocca has not had any interaction with Respondent since 2010.

Sergeant Timothy Dunleavy was Respondent's supervisor in the 102 Precinct while Respondent was assigned to regular patrol between July 2012 and June 2013. He described Respondent as eager and knowledgeable. He rated Respondent 4.0 on his annual evaluation.

Sergeant James Centeno supervised Respondent in the 102 Precinct between June 2013 and January 2014. He described Respondent as proactive and competent. He rated Respondent 4.0 on his annual evaluation. Respondent was at times responsible for vouchering property. There was never any problem. Centeno believed Respondent could be trusted.

Police Officer Timothy Arthur has known Respondent since childhood, and they are close friends. Even as a teenager, Respondent wanted to be a police officer. Between 2009 and 2011, they worked together in the 67 Precinct. There was never any problem with Respondent vouchering property during that period.

Police Officer Eugene Hunter was Respondent's partner on patrol in the 102 Precinct between July 2012 and January 2014. During that period, they were named Cops of the Month for a robbery arrest that they made. Hunter was a groomsman at Respondent's wedding.

Hunter, Dunleavy, Centeno, and Arthur all agreed that pocketing \$180 that should have been vouchered seemed out of character for Respondent. They conceded, however, that they had no firsthand knowledge of what Respondent did or did not do on July 23, 2012.

Findings and Analysis

Respondent stands charged in Specification No. 1 with falsely reporting to Marti the amount of money recovered from PersonA's vehicle in an attempt to keep the money.

Respondent claimed that because Herdina did not like him, Herdina devised an integrity test involving the money in the car and hid some of the money in the center console in order to ensure that Respondent would fail. Herdina acknowledged that because he was distrustful of Respondent, he intentionally left the money he had counted in the glove compartment in order to see what Respondent would do with it.

Respondent's argument is unpersuasive for several reasons. First, Respondent's timeline of events that day was incompatible with the timelines supplied by the other members of the service. According to Marti and Herdina, the entire incident occurred within an hour of Person A's 1:00 p.m. arrest. This is consistent with Sagistano's testimony that he and Herdina resumed patrol at around 1:30 p.m. and also consistent with Marti's testimony about notifying his commanding officer of the incident before the commanding officer went end of tour at 3:00 p.m. In contrast, Respondent's version of that day had Marti not telling him about the missing money until 7:00 or 8:00 p.m. This discrepancy casts a shadow of doubt over Respondent's account.

Another flaw in Respondent's defense is its assumption that Respondent's initial inventory search of the vehicle would ordinarily be improper and incomplete. As the arresting officer, Respondent was responsible for searching the entire car for contents. Even if, as Respondent claimed, Herdina had deliberately moved \$180 from the glove compartment to the center console just to sabotage Respondent, Herdina's scheme would

succeed only if Respondent neglected to look inside the console. It makes no sense that Herdina would know beforehand that Respondent would fail to conduct a proper and thorough search.

The most significant problem with Respondent's defense is Marti's testimony about Respondent's admission. Marti testified that at the end of tour Respondent approached him and apologized for attempting to take the money, explaining that he needed the money to buy prescription medication for his father. Marti had no motive to concoct such a specific and damaging story. There was no allegation of bad blood between Respondent and Marti. Marti's testimony about Respondent's admission was credible.

The character witnesses called by Respondent testified that Respondent was not the type of person who would attempt to steal money and could be trusted. Some of these witnesses worked with Respondent years before the incident; others were his personal friends. However, none of the character witnesses had any knowledge of Respondent's actions on July 23, 2012. Respondent admitted he was experiencing financial hardship during that period and as a result exercised bad judgment, as discussed below for Specification No. 3. The same financial hardship may have caused Respondent, who would not ordinarily be tempted to steal money, to exercise bad judgment again.

Accordingly, Respondent is found Guilty of this Specification.

SPECIFICATION NO. 2

Respondent stands charged in Specification No. 2 with failing to make required Activity Log entries [DX 3]. Respondent failed to note in his log the defendant's name,

charges, or any description of the circumstances that led to Person A's arrest. He testified that he forgot to include these necessary details. Accordingly, Respondent is found Guilty of this Specification.

SPECIFICATION NO. 3

Respondent stands charged in Specification No. 3 with, on January 9, 2013, accepting a loan in the amount of \$2500.00 from a merchant doing business in his assigned precinct. Vitale explained why it was misconduct for a member of the service to take a loan from a merchant within the command: "It's a corruption hazard because police officers are in a position of authority. Shop owners may feel compelled to give the officer a loan that they may not otherwise give. And also, shop owners and merchants may feel that they're due favors from the officer because they gave the officer loans in the past. So that's why it's just against Department policy."

Respondent admitted that he borrowed \$2500 from [REDACTED] the owner of an auto mechanic business located within the confines of his assigned precinct, who gave him \$500 in cash and \$2000 in the form of a check. [DX 1] He explained that he was experiencing financial difficulties and needed the money to pay off a student loan. He paid the loan back in five months. Accordingly, Respondent is found Guilty of this Specification.

PENALTY

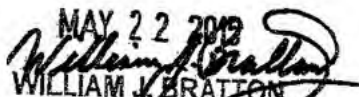
In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent

was appointed to the Department on July 8, 2008. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has been found guilty of failing to make required Activity Log entries and accepting a loan from a merchant in his precinct. Most troubling, he has also been found guilty of attempting to keep money that he recovered from a prisoner's vehicle. Someone who cannot be trusted to properly safeguard and voucher property cannot be trusted to be a police officer. This conclusion is consistent with *Case No. 77694/02* (April 1, 2003), in which a nine-year member with no prior disciplinary record was dismissed from the Department for taking \$50 in cash and a five-dollar phone card that should have delivered to the desk officer and vouchered.

Accordingly, it is recommended that Respondent be DISMISSED from the New York City Police Department.

APPROVED

MAY 22 2013

WILLIAM J. BRATTON
POLICE COMMISSIONER

Respectfully submitted,



Amy J. Porter
Assistant Deputy Commissioner Trials

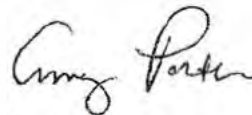
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER COREY HARRIS
TAX REGISTRY NO. 947064
DISCIPLINARY CASE NO. 2013-11049

Respondent received an overall rating of 3.0 “Competent” on his 2014 annual performance evaluation and 4.0 “Highly Competent” on his 2012 and 2013 annual performance evaluations. He has been awarded one medal for Excellent Police Duty. [REDACTED]

[REDACTED]
Respondent has no prior formal disciplinary record.

For your consideration.



Amy J. Porter
Assistant Deputy Commissioner Trials